

NON-DISCLOSURE AGREEMENT

THIS AGREEMENT is entered into as of _____ ("Effective Date"), by and between:

NetCore LLC (hereinafter, the "Company"), and

(hereinafter, the "Employee").

This Agreement is a condition of employment and continued employment, including, but not limited to, initial and continued access to Employer's and their customers', contractors', and vendors' confidential and proprietary information as provided and used for business purposes only.

WHEREAS, the Company and the Employee (hereinafter referred to as the "Party" and/or the "Parties") are entering into an arrangement for the Employee to perform services for the Company which may require the Company to disclose confidential and proprietary information ("Confidential Information") to the Employee;

NOW, THEREFORE, in consideration of the promises recited herein, each Party hereto agrees to disclose and to receive information as applicable in a manner consistent with the following provisions:

1. Ownership of the Confidential Information

The Employee acknowledges that the Confidential Information obtained by the Employee while employed by the Company, whether before or after the date of this Agreement, is the property of the Company and/or the Protected Parties, as applicable, and at no time shall belong to the Employee.

2. Definition of "Confidential Information"

"Confidential Information" shall mean any and all information, employee salaries, company revenues and expenses, breakdowns, financial reports, accounting documents, plans and budgets, information about clients and suppliers, trade secrets and proprietary data, rates, technical information, know-how and data, proprietary information, operating instructions, training manuals, customer lists, customer buying records and habits (technical or non-technical), or descriptions concerning any matters affecting or relating to the Employee's services for the Company, the business or operations of the Company, and/or the products, plans, processes, or other data of the Company disclosed or provided by the Company to the Employee, whether disclosed or provided in oral, written, graphic, photographic, electronic, or any other form.

Confidential Information will not include such information known to the Employee prior to the Employee's involvement with the Company or any of the Protected Parties, or information rightfully obtained from a third party other than pursuant to a breach by the Employee of this Agreement.

Without limiting the foregoing, the Employee agrees to keep confidential the existence of, and any information concerning, any dispute between the Employee and the Company, except as prohibited by law, or that the Employee may disclose information concerning such dispute to the court that is considering such dispute or to the Employee's legal counsel or representative, provided that such counsel or representative agrees not to disclose any such information other than as necessary to the prosecution or defense of such dispute.

3. Commercial Value and Detriment

"Confidential Information" shall include all information or material that has or could have commercial value or other utility in the business or prospective business of the Disclosing Party. Confidential Information also includes all information of which unauthorized disclosure could be detrimental to the interests of the Disclosing Party, whether or not such information is identified as Confidential Information by the Disclosing Party.

4. Non-Disclosure Obligations

The Employee agrees, without any time limitation, including during and after the term of this Agreement and his/her employment with the Company, that the Employee shall not disclose, use, or permit access to any unauthorized person or entity, including within the Company, or use for the Employee's own purposes or gain, or that of any friend, relative, or other third party, any Confidential Information without the prior written consent of the Company. This restriction does not apply if and to the extent that the aforementioned matters:

- (a) become generally known to and available for use by the public other than as a result of the Employee's acts or omissions in violation of this Agreement; or
- (b) were within the Employee's possession prior to being obtained by the Employee in the course of the Employee's employment with the Company.

If the Employee receives a request to disclose Confidential Information pursuant to a deposition, request for information or documents in legal proceedings, subpoena, civil investigative demand, governmental or regulatory process, or similar process:

- (a) the Employee shall promptly notify the Company in writing, and consult with and assist the Company in seeking a protective order or request for other appropriate remedy;
- (b) in the event that such protective order or remedy is not obtained, or if the Company waives compliance with the terms hereof, the Employee shall disclose only that portion of the Confidential Information which, in the written opinion of the Employee's legal counsel, is legally required to be disclosed and shall exercise reasonable best efforts to assure that confidential treatment shall be accorded to such Confidential Information by the receiving person or entity; and
- (c) the Company shall be given an opportunity to review the Confidential Information prior to disclosure.

5. Permitted Use

The Recipient and its Representatives shall use the Confidential Information solely for the purpose of evaluating a possible transaction or relationship with the Disclosing Party and shall not in any way use the Confidential Information to the detriment of the Disclosing Party. Nothing in this Agreement shall be construed as granting any rights to the Recipient, by license or otherwise, to any of the Disclosing Party's Confidential Information.

6. Return or Destruction of Documents

If the Recipient does not proceed with the possible transaction with the Disclosing Party, the Recipient shall notify the Disclosing Party of that decision and shall, at that time or at any time upon the request of the Disclosing Party for any reason, destroy or return to the Disclosing Party any and all records, notes, and other written, printed, or other tangible materials in its possession pertaining to the Confidential Information immediately on the written request of the Disclosing Party. The destruction or returning of materials shall not relieve the Recipient from compliance with other terms and conditions of this Agreement.

7. No Additional Agreements

Neither the holding of discussions nor the exchange of material or information shall be construed as an obligation of the Disclosing Party to enter into any other agreement with the Recipient or prohibit the Disclosing Party from providing the same or similar information to other parties and entering into agreements with other parties.

The Disclosing Party reserves the right, in its sole discretion, to reject any and all proposals made by the Recipient or its Representatives with regard to a transaction between the Recipient and the Disclosing Party and to terminate discussions and negotiations with the Recipient at any time. Additional agreements of the parties, if any, shall be in writing signed by the Disclosing Party and the Recipient.

8. Irreparable Harm and Remedies

The Recipient understands and acknowledges that any disclosure or misappropriation of any of the Confidential Information in violation of this Agreement may cause the Disclosing Party irreparable harm, the amount of which may be difficult to ascertain. Therefore, the Recipient agrees that the Disclosing Party shall have the right to apply to a court of competent jurisdiction for specific performance and/or an order restraining and enjoining any such further disclosure or breach and for such other relief as the Disclosing Party shall deem appropriate.

Such right of the Disclosing Party is to be in addition to the remedies otherwise available to the Disclosing Party at law or in equity. The Recipient expressly waives the defense that a remedy in damages will be adequate and any requirement in an action for specific performance or injunction for the posting of a bond by the Disclosing Party.

9. Governing Law

This Agreement shall be governed by the laws of the USA.

10. Employment Status

Nothing in this Agreement shall be construed as a promise of continued employment for any specific period of time. Nothing in this Agreement modifies or alters the "at-will" nature of the Employee's employment.

11. Violations and Disciplinary Action

Violation of this Agreement will subject the Employee to disciplinary action according to the Employer's disciplinary policy, up to and including termination.

12. Protected Employee Activity

Nothing in this Agreement is intended to interfere with, or have a chilling effect on, any state or federal protected rights of the Employee. Should the Employee have any question regarding the application of this Agreement to the Confidential Information of the Company or any of the Protected Parties, the Employee should contact the Company for compliance.

13. Entire Agreement

This Agreement expresses the full and complete understanding of the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous proposals, agreements, representations, and

understandings, whether written or oral, with respect to the subject matter. This Agreement may not be amended or modified except in writing signed by each of the Parties to the Agreement. This Agreement shall be construed as to its fair meaning and not strictly for or against either Party. The headings hereof are descriptive only and not to be construed in interpreting the provisions hereof.

COMPANY:

Company Name: **NetCore LLC**

Date: _____

EMPLOYEE:

Full Name:

Date:

Signature: _____